

The Act at the Top of It All

A plain-language breakdown of the Income and Employment Supports Act (IESA), Chapter I-0.5 — the statute the July 2 changes amended

This is the other document the July 2 bulletin points to. The Income and Employment Supports Act is the **statute** — the top-level law passed by the Legislature that everything else hangs from. The regulation fills in details; this Act sets the frame. This breakdown covers the parts that decide two things people care about most: when you have to pay money back, and when you are allowed to appeal. The full Act is reproduced with this document.

Act versus regulation, in one line

The **Act** is the law the Legislature debates and passes. The **regulation** is the detailed rulebook Cabinet can change more quietly underneath it. Both are law. When you see a right described in general terms, it is usually in the Act; when you see the fine print that limits it, that is often pushed down into the regulation. Reading them together is the only way to see the whole picture.

The right to appeal — and the exceptions that shrink it

Section 43 is headed “**Decisions that may be appealed.**” It says a decision of the Director about your eligibility, or the amount of your assistance, or an amount you are required to repay, may be appealed to an appeal panel — *except* for decisions listed in section 44. Then section 43 adds a hard line: **a decision that may not be appealed is final when it is made.**

Section 44 is headed “**Exceptions,**” and it is where the right narrows. It says no appeal lies for several categories — including, critically, **a change, refusal, or cancellation of assistance “caused by an amendment to this Act or the regulations,”** and “any other matter exempted from appeal by the regulations.”

Read those two exceptions slowly

The first one means: if the government changes the law and your benefits drop as a result, that drop is generally **not appealable** — because it flows from the amendment itself, not from a decision about your particular case. The second one means the regulation can add *more* things to the no-appeal list without touching the Act at all. Together, these two lines are how a benefit cut written into law arrives with no individual appeal attached, and how the list of un-appealable decisions can keep growing quietly. The documented effect: the appeal door is framed as open in section 43, then narrowed by section 44 and by whatever the regulation adds.

When you have to repay: section 35

Section 35 (“Repayment”) says a person must repay assistance if, **in the Director's opinion**, it was used for the wrong purpose or the person received assistance they were not entitled to. Two things are worth noticing.

First, the trigger rests on the Director's opinion, which places significant judgment in one office. Second, the Director *may* exempt a person from repaying if there are “appropriate circumstances” — but not where the debt is of a certain kind, or where, in the Director's opinion, the benefit was received by wilful misrepresentation or fraud.

Here is where the Act and the July 2 bulletin connect. Section 35 lets the Director exempt someone from repayment. The bulletin then declares that a decision *not* to grant that exemption is **not appealable**. So the power to forgive a debt sits with the Director, and the refusal to forgive it cannot be reviewed. That is the mechanism, laid out across the Act and the bulletin together.

The bottom line

The Act gives with one hand and the exceptions take with the other. Section 43 names a right to appeal; section 44 and the regulation carve pieces out of it, including benefit cuts that come straight from a change in the law. Section 35 puts repayment — and the power to forgive it — in the Director's hands, and the July 2 bulletin then seals the refusal to forgive off from appeal. None of this requires assuming intent. The words are in the statute. The full Act is reproduced with this breakdown.

Source: Income and Employment Supports Act, RSA, Chapter I-0.5, current as of December 18, 2025 (Alberta King's Printer). Section references are to that consolidation. This breakdown is a plain-language companion and is not legal advice. Where it differs from the official Act, the official Act governs.